S,

1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETORESOLUTION MEPC.328(76)

INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS,

1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO

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RESOLUTION MEPC.329(76) (adopted on 17 June 2021)

FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO - 2 -

RESOLUTION MEPC.329(76)

(adopted on 17 June 2021)

PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE

PROTOCOL OF 1978 RELATING THERETO

(Prohibition on the use and carriage for use as fuel of heavy fuel oil

by ships in Arctic waters)

THE MARINE ENVIRONMENT PROTECTION COMMITTEE,

RECALLING Article 38(a) of the Convention on the International Maritime Organization

concerning the functions o f the Marine Environment Protection Committee conferred upon it

by international conventions for the prevention and control of marine pollution from ships,

RECALLING ALSO article 16 of the International Convention for the Prevention of Pollution

from Ship s, 1973, as modified by the Protocol of 1978 relating thereto (MARPOL), which

specifies the amendment procedure and confers upon the appropriate body of the

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from Ship s, 1973, as modified by the Protocol of 1978 relating thereto (MARPOL), which

specifies the amendment procedure and confers upon the appropriate body of the

Organization the function of considering and adopting amendments thereto,

HAVING CONSIDERED, at it s seventy -sixth session, proposed

Annex I concerning the prohibition on the use and carriage for use as fuel of heavy fuel oil by

ships in Arctic waters, which were circulated in accordance with article 16(2)(a) of MARPOL,

1 ADOPTS, in accordance with article 16(2)(d) of MARPOL,

Annex I, the text of which is set out in the annex to the present resolution;

2 DETERMINES, in accordance with article 16(2)(f)(iii) of MARPOL, that the

amendments shall be deemed to have been accepted on 1 May 2022 unless prior to that date

not less than one third of the Parties or Parties the combined merchant fleets of which

constitute not less than 50% of the gross tonnage of the world's merchant fleet have

communicated to the Organization their objection to the amendments;

3 INVITES the Parties to note that, in accordance with article 16(2)(g)(ii) of MARPOL,

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constitute not less than 50% of the gross tonnage of the world's merchant fleet have

communicated to the Organization their objection to the amendments;

3 INVITES the Parties to note that, in accordance with article 16(2)(g)(ii) of MARPOL,

the said amendments shall enter into force on 1 November 2022 upon their acceptance in

accordance with paragraph 2 above;

4 REQUESTS the Secretary-General, for the purposes of article 16(2)(e) of MARPOL,

to transmit certified copies of the present resolution and the text of the amendments contained

in the annex to all Parties to MARPOL;

5 REQUESTS ALSO the Secretary-General to transmit copies of the present resolution

and its annex to Members of the Organization which are not Parties to MARPOL.

RESOLUTION MEPC.329(76) (adopted on 17 June 2021)

FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO - 3 -

ANNEX

(Prohibition on the use and carriage for use as fuel of heavy fuel oil by ships in

Arctic waters)

1 The title of chapter 9 is amended as follows:

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ANNEX

(Prohibition on the use and carriage for use as fuel of heavy fuel oil by ships in

Arctic waters)

1 The title of chapter 9 is amended as follows:

"Chapter 9 – Special requirements for the use or carriage of oils in polar waters"

2 A new regulation 43A is added in chapter 9 after existing regulation 43, as follows:

"Regulation 43A

Special requirements for the use and carriage of oils as fuel in Arctic waters

1 With the exception of ships engaged in securing the safety of ships or in

search and rescue operations, and ships dedicated to oil spill preparedness and

response, the use and carriage of oils listed in regulation 43.1.2 of this Annex as fuel

by ships shall be prohibited in Arctic waters, as defined in regulation 46.2 of this

Annex, on or after 1 July 2024.

2 Notwi